Florida Senate Bill 394 (2025)

(2025) FL S 394 | Ileana Garcia (R-036) | Failed | Died

Elections

Requires the Department of State; adopts rules for minimum standards for security measures for electronic and electromechanical voting and other election systems; requires that a certain full supply chain analysis; conducts on specified components; r... More

---

Versions:

Introduced - Mar 4, 2025

Added | ~~Deleted~~ |

Florida Senate - 2025

SB 394

By Senator Garcia

A bill to be entitled

An act relating to elections; amending s. 97.021, F.S.; defining terms; making technical changes; amending s. 101.015, F.S.; requiring the Department of State to adopt rules for minimum standards for security measures for electronic and electromechanical voting and other election systems; requiring that the Election Technology Advisory Board annually evaluate such rules; requiring that the department annually update such rules; revising the standards for such rules; requiring that voting and other election systems comply with specified standards; providing the required standards that must be met or exceeded; requiring the Election Technology Advisory Board to resolve conflicts among differing standards by making a specified determination; providing exceptions to such standards under specified circumstances; requiring that security measures be outlined in the county security plan approved by the department; requiring the department to adopt or modify specified rules; requiring that a certain full supply chain analysis be conducted on specified components; requiring the Election Technology Advisory Board to make certain recommendations; making technical changes; amending s. 101.017, F.S.; revising the name of the Bureau of Voting Systems to the Bureau of Voting Systems and Other Election Systems; providing that the bureau is also responsible for other election technology standards and certification; requiring that the bureau hire a certain number of credentialed cybersecurity experts; requiring that the Florida Cybersecurity Advisory Council and a state security risk assessment team review all county security plans and election security rules biennially; creating s. 101.018, F.S.; creating the Election Technology Advisory Board; providing the board's responsibilities, membership, and quorum requirements; providing for future legislative review and repeal of the advisory board; amending s. 101.293, F.S.; providing that other election systems are subject to competitive solicitation requirements under specified conditions; making technical changes; amending s. 101.294, F.S.; requiring the Division of Elections to adopt specified rules; prohibiting governing bodies from purchasing any other election system unless such system has been certified by the Department of State; requiring governing bodies to notify the division of purchasing or selling other election systems; requiring the division to inform governing bodies of the availability of new or used other election systems; prohibiting vendors from providing other election systems that are uncertified to local governing bodies and supervisors of elections; requiring that vendors of other election systems provide a certain certification to local governing bodies or supervisors of elections; amending s. 101.295, F.S.; providing criminal penalties for members of governing bodies who purchase or sell other election systems in violation of specified provisions; increasing the criminal penalty for such members who purchase or sell voting equipment; amending s. 101.34, F.S.; providing that supervisors of elections are the custodians of other election systems; authorizing supervisors of elections to appoint deputies to prepare and supervise other election systems; reenacting and amending s. 101.341, F.S.; prohibiting specified persons from accepting employment or any consideration from persons or entities involved in the purchase, repair, or sale of other election systems and election materials under specified conditions; prohibiting supervisors and their employees from seeking employment, contracts, or other relationships with specified suppliers on behalf of the employees' family members; requiring such persons to advise family members that such relationships create the appearance of a conflict of interest; requiring supervisors to notify the Secretary of State of such conflict; authorizing the secretary to remove or retain supervisors under specified conditions; requiring the secretary to promptly report certain information to the public; providing criminal penalties; making technical changes; amending s. 101.5604, F.S.; authorizing boards of county of commissioners to adopt, purchase, or otherwise procure other election systems under specified conditions; providing that counties may use either electronic or electromechanical precinct-count tabulation voting systems or count ballots

by hand at the precinct level; amending s. 101.5605, F.S.; requiring the Department of State to examine publicly all other election systems submitted and make a certain determination; authorizing persons owning or interested in other election systems to submit such systems to the department for examination; requiring the department to employ specified individuals; prohibiting the Secretary of State and examiners from having a pecuniary interest in other election systems, election materials, and election-related service providers; requiring disclosure of potential conflicts under specified conditions; providing that any examiners who have a conflict be excluded from certain activities; requiring that persons contracting with the Department of State to provide other election systems have a registered agent in this state; making technical changes; amending s. 101.5606, F.S.; revising the requirements voting systems must meet to be approved by the Department of State; prohibiting other election systems or election vendors from being approved by the department unless certain conditions are confirmed; amending s. 101.56065, F.S.; revising definitions; requiring vendors to file a written disclosure with the department identifying defects in other election systems; requiring the department to suspend the use of systems if a certain determination is made; prohibiting the sale, lease, or use of other election systems under a specified condition; requiring, rather than authorizing, the department to initiate investigations under certain circumstances; revising the civil penalty for vendors that fail to disclose or cure a defect; revising the actions the department is authorized or required to take if it finds a defect existed; conforming provisions to changes made by the act; making technical changes; amending s. 101.5612, F.S.; requiring that a certification team inspect and approve all source code for specified equipment; requiring the Secretary of State and vendors to maintain specified certificates; requiring vendors to prepare a code package and digital signature using such certificate and submit both to the secretary; requiring the secretary to promptly and permanently publish such materials on its publicly available website; requiring the secretary to follow such process for all change events; prohibiting the installation of certain software; requiring that a certain list of all systems be posted on the website and updated under specified conditions; requiring that certain tests be sufficient to make certain determinations; requiring that the same testing standards be implemented on other election systems; requiring supervisors of elections to have other election systems publicly tested; specifying that voting system testing must ascertain that such system will correctly count votes cast for all offices and measures; requiring, rather than authorizing, supervisors to conduct additional testing within a specified timeframe under certain conditions; requiring that other election system testing ascertain that the system will correctly perform its designated functions during an election; requiring that all testing be subject to public notice of the time and place; requiring, rather than authorizing, supervisors or other municipal elections officials to give a certain notice to candidates; specifying that designees from political parties are allowed in work areas during testing and ballot counting; authorizing the party designee to observe other election systems during elections, request inspection of and photograph system settings, and have access to a certain hotline; providing that the public must be able to observe tabulators and other election equipment through specified means; prohibiting designees and the public from interfering with certain operations of the canvassing board; requiring that the public and designees be able to call a hotline and submit a work ticket; requiring that such calls be monitored by the state and canvassing board; authorizing political parties to have designees monitor the hotline; requiring that a randomly selected number of test ballots from public participants be chosen; providing that after reconciliation, two batches of ballots be comingled and reconciled again; requiring that such process be repeated and errorless results be achieved under specified conditions; requiring that voting systems in absentee vote counting centers be publicly

tested; revising the sample selection process for such testing; requiring that a randomly selected number of test ballots from public participants be chosen; providing that after reconciliation, two batches of ballots be comingled and reconciled again; requiring that such process be repeated and errorless results be achieved under specified conditions; requiring that other election systems that are determined to have an error in their functions or security measures be deemed unsatisfactory; requiring the canvassing board, with assistance from specified experts, to take steps to determine the cause of the error, identify and test other devices, and test a number of additional devices to make a certain determination; prohibiting systems from allowing remote logins; requiring that specified seals be used to seal specified points of entry for voting devices; revising the written statements executed by a canvassing board or its representative to include the number of seals and other election systems; requiring that tabulating devices and other election systems that are unsatisfactory be recoded, repaired, or replaced and be available for retesting; requiring that records of certain tests on other election systems be kept; requiring that certain records related to testing be available through public records requests at no charge; authorizing the posting of such records on the election office website; requiring that records be kept for a specified timeframe; making technical changes; amending s. 101.591, F.S.; revising when county canvassing boards or local boards responsible for certifying elections must conduct a manual audit; specifying how such manual audit must be conducted; revising the contents of the tally sheet used by precincts for ballots collected and counted; requiring the canvassing board and public observers to be present for specified actions; requiring that such actions be videotaped and livestreamed; requiring that automated audits use original paper ballots; requiring that precincts be randomly selected by the county canvassing board or the local board responsible for certifying an election at a publicly noticed meeting; requiring that audits be completed and results made public before an election is certified; making a technical change; amending ss. 101.68 and 101.69, F.S.; conforming cross-references; providing an effective date.

Be It Enacted by the Legislature of the State of Florida:

Section 1. Section 97.021, Florida Statutes, is amended to read:

97.021 Definitions. --For the purposes of this code, except where the context clearly indicates otherwise, the term:

(1) "Absent elector" means any registered and qualified voter who casts a vote-by-mail ballot.

(2) "Absent uniformed services voter" means:

(a) A member of a uniformed service on active duty who, by reason of such active duty, is absent from the place of residence where the member is otherwise qualified to vote;

(b) A member of the merchant marine who, by reason of service in the merchant marine, is absent from the place of residence where the member is otherwise qualified to vote; or

(c) A spouse or dependent of a member referred to in paragraph (a) or paragraph (b) who, by reason of the active duty or service of the member, is absent from the place of residence where the spouse or dependent is otherwise qualified to vote.

(3) "Address of legal residence" means the legal residential address of the elector and includes all information necessary to differentiate one residence from another, including, but not limited to, a distinguishing apartment, suite, lot, room, or dormitory room number or other identifier.

(4) "Alternative formats" has the meaning ascribed in the Americans with Disabilities Act of 1990, Pub. L. No. 101-336, 42 U.S.C. ss. 12101 et seq., including specifically the technical assistance manuals promulgated thereunder, as amended.

(5) "Auditable storage methods" means using a systematic, independent, documented process when obtaining records or information and then assessing the records or information objectively to determine whether all requirements are fulfilled; recording all information in a manner that allows election officials to review the activities that occurred on the voting equipment to verify or reconstruct the steps followed without compromising the ballot or voter secrecy; and having a paper printout produced by the direct-recording electronic voting machines, which election officials may use to cross-check electronically tabulated totals. The term also includes maintaining, at a minimum, two sets of records that are different in form to create resistance to accidental or deliberate damage, one set which is usable in a counting process and one set which is usable to verify its agreement with the other set or sets of records used in the counting process.

(6) "Automatic tabulating equipment" means an apparatus that automatically examines, counts, and records votes.

(7) ~~(6)~~ "Ballot" or "official ballot" when used in reference to:

(a) "Electronic or electromechanical devices" means a ballot that is voted by the process of electronically designating, including by touchscreen, or marking with a marking device for tabulation by automatic tabulating equipment or data processing equipment.

(b) "Marksense ballots" means that printed sheet of paper, used in conjunction with an electronic or electromechanical vote tabulation voting system, containing the names of candidates, or a statement of proposed constitutional amendments or other questions or propositions submitted to the electorate at any election, on which sheet of paper an elector casts his or her vote.

(8)(a) ~~(7)~~ "Candidate" means any person to whom any ~~one or more~~ of the following applies:

1. ~~(a) Any person who~~ Seeks to qualify for nomination or election by means of the petitioning process.

2. ~~(b) Any person who~~ Seeks to qualify for election as a write-in candidate.

3. ~~(c) Any person who~~ Receives contributions or makes expenditures, or gives his or her consent for any other person to receive contributions or make expenditures, with a view to bringing about his or her nomination or election to, or retention in, public office.

4. ~~(d) Any person who~~ Appoints a treasurer and designates a primary depository.

5. ~~(e) Any person who~~ Files qualification papers and subscribes to a candidate's oath as required by law.

(b) The term ~~However, this definition~~ does not include any candidate for a political party executive committee.

(9) "Data network communications" means the transfer of data and information between various endpoints or systems using a communication network. The communication network may be local, as in within a building, or across a wide area, as in spread amongst buildings or across a distance, and may be wired or wireless.

(10) ~~(8)~~ "Department" means the Department of State.

(11) ~~(9)~~ "Division" means the Division of Elections of the Department of State.

(12) ~~(10)~~ "Early voting" means casting a ballot prior to election day at a location designated by the supervisor of elections and depositing the voted ballot in the tabulation system.

(13) ~~(11)~~ "Early voting area" means the area designated by the supervisor of elections at an early voting site at which early voting activities occur, including, but not limited to, lines of voters waiting to be processed, the area where voters check in and are processed, and the area where voters cast their ballots.

(14) ~~(12)~~ "Early voting site" means those locations specified in s. 101.657 and the building in which early voting occurs.

(15) ~~(13)~~ "Election" means any primary election, special primary election, special election, general election, or presidential preference primary election.

(16) ~~(14)~~ "Election board" means the clerk and inspectors appointed to conduct an election.

(17) ~~(15)~~ "Election costs" shall include, but not be limited to, expenditures for all paper supplies such as envelopes, instructions to voters, affidavits, reports, ballot cards, ballot booklets for vote-by-mail voters, postage, notices to voters; advertisements for registration book closings, testing of voting equipment, sample ballots, and polling places; forms used to qualify candidates; polling site rental and equipment delivery and pickup; data processing time and supplies; election records retention; and labor costs, including those costs uniquely associated with vote-by-mail ballot preparation, poll workers, and election night canvass.

(18) "Election data" means all information and electronic records pertaining to a specific election, including, but not limited to, ballot design, inbound and outbound mailing, chain of custody, postal billing, data network communication logs, election reporting, and vote-by-mail ballot tracking.

(19) "Election Technology Advisory Board" means a group of diversely credentialed experts capable of assessing compliance with state, federal, and commercial standards and evaluating evolving information technology, cybersecurity, manual process controls, pre-election certification auditing, and other enterprise risk management standards.

(20) ~~(16)~~ "Elector" is synonymous with the word "voter" or "qualified elector or voter," except where the word is used to describe presidential electors.

(21) ~~(17)~~ "General election" means an election held on the first Tuesday after the first Monday in November in the even numbered years, for the purpose of filling national, state, county, and district offices and for voting on constitutional amendments not otherwise provided for by law.

(22) ~~(18)~~ "Lists of registered electors" means names and associated information of registered electors maintained by the department in the statewide voter registration system or generated or derived from the statewide voter registration system. Lists may be produced in printed or electronic format.

(23) ~~(19)~~ "Member of the Merchant Marine" means an individual, other than a member of a uniformed service or an individual employed, enrolled, or maintained on the Great Lakes for the inland waterways, who is:

(a) Employed as an officer or crew member of a vessel documented under the laws of the United States, a vessel owned by the United States, or a vessel of foreign-flag registry under charter to or control of the United States; or

(b) Enrolled with the United States for employment or training for employment, or maintained by the United States for emergency relief service, as an officer or crew member of such vessel.

(24) ~~(20)~~ "Minor political party" is any group as specified in s. 103.095 which on January 1 preceding a primary election does not have registered as members 5 percent of the total registered electors of the state.

(25) ~~(21)~~ "Newspaper of general circulation" means a newspaper printed in the language most commonly spoken in the area within which it circulates and which is readily available for purchase by all inhabitants in the area of circulation, but does not include a newspaper intended primarily for members of a particular professional or occupational group, a newspaper the primary function of which is to carry legal notices, or a newspaper that is given away primarily to distribute advertising.

(26) ~~(22)~~ "Nominal value" means having a retail value of $10 or less.

(27) ~~(23)~~ "Nonpartisan office" means an office for which a candidate is prohibited from campaigning or qualifying for election or retention in office based on party affiliation.

(28) ~~(24)~~ "Office that serves persons with disabilities" means any state office that takes applications either in person or over the telephone from persons with disabilities for any program, service, or benefit primarily related to their disabilities.

(29) "Other election system" means any information technology other than the voting systems used in the election process which can add, delete, or modify ballots or votes or which store critical election data. The term includes hosted technologies or service providers that store or have access to critical election data. The term also includes, but is not limited to, the voter registration system, e-pollbooks, tabulation systems, mail sorters, election night reporting, ballot tracking solutions, and future technologies integrated into the election process.

(30) ~~(25)~~ "Overseas voter" means:

(a) An absent uniformed services voter who, by reason of active duty or service, is absent from the United States on the date of the election involved;

(b) A person who resides outside the United States and is qualified to vote in the last place in which the person was domiciled before leaving the United States; or

(c) A person who resides outside the United States and, but for such residence, would be qualified to vote in the last place in which the person was domiciled before leaving the United States.

(31) ~~(26)~~ "Overvote" means that the elector marks or designates more names than there are persons to be elected to an office or designates more than one answer to a ballot question, and the tabulator records no vote for the office or question.

(32) ~~(27)~~ "Persons with disabilities" means individuals who have a physical or mental impairment that substantially limits one or more major life activities.

(33) ~~(28)~~ "Petition circulator" means an entity or individual who collects signatures for compensation for the purpose of qualifying a proposed constitutional amendment for ballot placement.

(34) ~~(29)~~ "Polling place" is the building which contains the polling room where ballots are cast.

(35) ~~(30)~~ "Polling room" means the actual room in which ballots are cast on election day and during early voting.

(36) "Portable data storage" means a compact plug-and-play storage device, such as a USB flash drive, which is designed to hold digital data of any kind.

(37) ~~(31)~~ "Primary election" means an election held preceding the general election for the purpose of nominating a party nominee to be voted for in the general election to fill a national, state, county, or district office.

(38) ~~(32)~~ "Provisional ballot" means a conditional ballot, the validity of which is determined by the canvassing board.

(39) ~~(33)~~ "Public assistance" means assistance provided through the food assistance program under the federal Supplemental Nutrition Assistance Program; the Medicaid program; the Special Supplemental Food Program for Women, Infants, and Children; and the Temporary Cash Assistance Program.

(40) ~~(34)~~ "Public office" means any federal, state, county, municipal, school, or other district office or position which is filled by vote of the electors.

(41) ~~(35)~~ "Qualifying educational institution" means any public or private educational institution receiving state financial assistance which has, as its primary mission, the provision of education or training to students who are at least 18 years of age, provided such institution has more than 200 students enrolled in classes with the institution and provided that the recognized student government organization has requested this designation in writing and has filed the request with the office of the supervisor of elections in the county in which the institution is located.

(42) ~~(36)~~ "Special election" is a special election called for the purpose of voting on a party nominee to fill a vacancy in the national, state, county, or district office.

(43) ~~(37)~~ "Special primary election" is a special nomination election designated by the Governor, called for the purpose of nominating a party nominee to be voted on in a general or special election.

(44) ~~(38)~~ "Supervisor" means the supervisor of elections.

(45) ~~(39)~~ "Tactile input device" means a device that provides information to a voting system by means of a voter touching the device, such as a keyboard, and that complies with the requirements of s. 101.56062(1)(k) and (l).

(46) ~~(40)~~ "Third-party registration organization" means any person, entity, or organization soliciting or collecting voter registration applications. A third-party voter registration organization does not include:

(a) A person who seeks only to register to vote or collect voter registration applications from that person's spouse, child, or parent; or

(b) A person engaged in registering to vote or collecting voter registration applications as an employee or agent of the division, supervisor of elections, Department of Highway Safety and Motor Vehicles, or a voter registration agency.

(47) ~~(41)~~ "Undervote" means that the elector does not properly designate any choice for an office or ballot question, and the tabulator records no vote for the office or question.

(48) ~~(42)~~ "Uniformed services" means the Army, Navy, Air Force, Marine Corps, Space Force, and Coast Guard, the commissioned corps of the Public Health Service, and the commissioned corps of the National Oceanic and Atmospheric Administration.

(49) "Voter data" means all voter records pertaining to an individual voter, including voter registration, voter signature, voter registration changes, voted status, and voting history.

(50) ~~(43)~~ "Voter interface device" means any device that communicates voting instructions and ballot information to a voter and allows the voter to select and vote for candidates and issues. A voter interface device may not be used to tabulate votes. Any vote tabulation must be based upon a subsequent scan of the marked marksense ballot or the voter-verifiable paper output after the voter interface device process has been completed.

(51) ~~(44)~~ "Voter registration agency" means any office that provides public assistance, any office that serves persons with disabilities, any center for independent living, or any public library.

(52) ~~(45)~~ "Voter registration official" means any supervisor of elections or individual authorized by the Secretary of State to accept voter registration applications and execute updates to the statewide voter registration system.

(53) ~~(46)~~ "Voting booth" or "booth" means that booth or enclosure wherein an elector casts his or her ballot for tabulation by an electronic or electromechanical device.

(54) ~~(47)~~ "Voting system" means a method of casting and processing votes that functions wholly or partly by use of electromechanical or electronic apparatus or by use of marksense ballots and includes, but is not limited to, the procedures for casting and processing votes and the programs, operating manuals, supplies, printouts, and other software necessary for the system's operation.

Section 2. Section 101.015, Florida Statutes, is amended to read:

101.015 Standards for voting systems, other election systems, and election material security. --

(1) The Department of State shall adopt rules which establish minimum standards for hardware, ~~and~~ software, and security measures for electronic and electromechanical voting systems and other election systems. Such rules must be evaluated annually by the Election Technology Advisory Board and updated annually by the department. The rules must ~~shall~~ contain standards for:

(a) Functional requirements;

(b) Performance levels;

(c) Physical and design characteristics;

(d) Documentation requirements; ~~and~~

(e) Evaluation criteria; ~~.~~

(f) Security, auditability, chain of custody, and reporting compliance;

(g) Auditable storage methods;

(h) Portable data storage requirements;

(i) Which data network communications components, sub components, configurations, and settings are specifically allowed or prohibited, as applicable;

(j) On-premises deployment requirements;

(k) Hardware self-diagnostics, reporting, maintenance plan, and emergency support requirements;

(l) Department review and favorable assessment of vendor software development methodology, code, and functionality; and

(m) Department review and favorable assessment of vendor information security practices.

(2)(a) All voting and other election systems must comply with state, federal, and commercial standards in addition to evolving technology, cybersecurity, manual process control, pre election certification auditing, and other enterprise risk management standards that are relevant to the criteria set forth in this section. Notwithstanding the relevant standards, all of the following requirements must be met or exceeded:

1. Tabulators may not use internal or external hardware that enables cellular, Wi-Fi, Bluetooth, or other wireless data communications.

2. Data network communications must use an Ethernet switch and category 6 Ethernet cables or the current equivalent technology.

3. Voting systems and other elections systems must be based on open source code that is compiled and distributed by the department, or based on proprietary software that is inspected using real-time reporting and auditing.

4. All software development must be conducted in the United States by United States citizens and must use data stored in the United States.

5. Maintenance must be performed by United States citizens who annually satisfy a background screening requirement.

6. Auditable storage methods must ensure that election data is immutable.

7. Portable storage media must be compatible with state approved county elections security plans that specify portable media chain of custody requirements.

8. Use of hosted services is discouraged and may be certified only if all of the following apply:

a. The vendor has secure enclaves.

b. The vendor is based within the United States.

c. Data is stored only in the United States.

d. The software is developed by United States citizens who annually satisfy background screening requirements.

e. The hosting of services is operated solely by United States citizens who annually satisfy background screening requirements.

9. System pre-election testing must include evaluation of security software and network communication settings.

10. System precertification mini-audits must include verification that systems settings have not been changed and that unauthorized data network communication or unauthorized system access has not occurred.

(b) If there is a conflict between standards, the Election Technology Advisory Board must determine which standard is to be used based on efficacy, relevancy, cost, and election timeline constraints. Systems deployed before July 1, 2025, or adoption of a department rule or the issuance of new or updated standards may continue to be used if security measures are put in place which adequately mitigate noncompliance risks. The security measures must be outlined in the county security plan approved by the department, as required by department rule. The department shall adopt or modify rules to enforce this subsection.

(3) A full supply chain analysis must be conducted on legacy and new hardware, firmware, and software to ensure the certified hardware and software are produced and developed in the United States using components that are free from malware, spyware, and hidden communication or connection capabilities. The Election Technology Advisory Board shall make recommendations on the remedy for legacy technologies that do not meet the requirements of this section.

(4) Each odd-numbered year the Department of State shall review the rules governing standards and certification of voting systems to determine the adequacy and effectiveness of such rules in assuring that elections are fair and impartial.

(5) ~~(3)~~ The Department of State shall adopt rules to achieve and maintain the maximum degree of correctness, impartiality, and efficiency of the procedures of voting, including write-in voting, and of counting, tabulating, and recording votes by voting systems used in this state.

(6)(a) ~~(4)(a)~~ The Department of State shall adopt rules establishing minimum security standards for voting systems. The standards must, at a minimum, ~~must~~ address the following:

1. Chain of custody of ballots, including a detailed description of procedures to create a complete written record of the chain of custody of ballots and paper outputs beginning with their receipt from a printer or manufacturer until such time as they are destroyed.

2. Transport of ballots, including a description of the method and equipment used and a detailed list of the names of all individuals involved in such transport.

3. Ballot security, including a requirement that all ballots be kept in a locked room in the supervisor's office, a facility controlled by the supervisor or county canvassing board, or a public place in which the county canvassing board is canvassing votes until needed for canvassing and returned thereafter.

(b)1. Each supervisor shall establish written procedures to assure accuracy and security in his or her county, including procedures related to early voting pursuant to s. 101.657. Such procedures must ~~shall~~ be reviewed in each odd-numbered year by the department.

2. Each supervisor shall submit any revisions to the security procedures to the department at least 45 days before early voting commences pursuant to s. 101.657 in an election in which they are to take effect.

(7)(a) ~~(5)(a)~~ The Department of State shall adopt rules which establish standards for provisional approval of hardware and software for innovative use of electronic and electromechanical voting systems. Such rules must ~~shall~~ contain standards for:

1. Functional requirements;

2. Performance levels;

3. Physical and design characteristics;

4. Documentation requirements;

5. Evaluation criteria;

6. Audit capabilities; and

7. Consideration of prior use of a system.

(b) A voting system may ~~shall~~ be provisionally approved for ~~a total of~~ no more than 2 years, and the Department of State has the authority to revoke such approval. Provisional approval of a system may ~~shall~~ not be granted by the Department of State to supersede certification requirements of this section.

(c)1. No provisionally approved system may be used in any election, including any municipal election, without the authorization of the Department of State.

2. An application for use of a provisionally approved system must ~~shall~~ be submitted at least 120 days before ~~prior to~~ the intended use by the supervisor of elections or municipal elections official. Such application must ~~shall~~ request authorization for use of the system in a specific election. Each application must ~~shall~~ state the election, the number of precincts, and the number of anticipated voters for which the system is requested for use.

3. The Department of State shall authorize or deny authorization of the use of the provisionally approved system for the specific election and shall notify the supervisor of elections or municipal elections official in writing of the authorization or denial of authorization, along with the reasons therefor, within 45 days after receipt of the application.

(d) A contract for the use of a provisionally approved system for a specific election may be entered into with the approval of the Department of State. No contract for title to a provisionally approved system may be entered into.

(e) The use of any provisionally approved system is ~~shall be~~ valid for all purposes.

(8) ~~(6)~~ All electronic and electromechanical voting systems purchased on or after January 1, 1990, must meet the minimum standards established under subsection (1). All electronic and electromechanical voting systems in use on or after July 1, 1993, must meet the minimum standards established under subsection (1) or subsection (7) ~~(5)~~.

(9) ~~(7)~~ The Division of Elections shall review the voting systems certification standards and ensure that new technologies are available for selection by boards of county commissioners which meet the requirements for voting systems and meet user standards. The Division of Elections shall continuously review the voting systems certification standards to ensure that new technologies are appropriately certified for all elections in a timely manner. The division shall also develop methods to determine the will of the public with respect to voting systems.

Section 3. Section 101.017, Florida Statutes, is amended to read:

101.017 Bureau of Voting Systems and Other Election Systems Certification. --There is created a Bureau of Voting Systems and Other Election Systems Certification within the Division of Elections of the Department of State which shall provide technical support to the supervisors of elections and which is responsible for voting system and other election technology standards and certification. The positions necessary for the bureau to accomplish its duties must ~~shall~~ be established through the budgetary process and include at least two credentialed cybersecurity experts. All county security plans and rules relating to election security must be reviewed by the Florida Cybersecurity Advisory Council and a state security risk assessment team at least every odd-numbered year.

Section 4. Section 101.018, Florida Statutes, is created to read:

101.018 Election Technology Advisory Board. --

(1) There is created under the Executive Office of the Governor, and with the guidance of the state chief information officer, the Secretary of State, and the Florida Cybersecurity Advisory Council, the Election Technology Advisory Board.

(2) The board shall be responsible for all of the following:

(a) Making recommendations on election technology and security standards, certification, procurement, and management policies. If multiple federal or commercial standard options exist, the board must make a recommendation of the standard to be followed based on efficacy, relevancy, cost, and election timeline constraints.

(b) Assessing the adherence to and effectiveness of such policies and providing reports on the board's findings and recommendations annually to the Legislature and biannually to the Secretary of State. The report must include a review and assessment of the security plans implemented by the supervisors and procedural and information technology audit reports.

(c) Directing and participating in election security risk assessments annually with guidance and participation from the state chief information officer, the Secretary of State, the Florida Cybersecurity Advisory Council, and industry experts.

(3)(a) The Governor shall appoint at least five members to the board.

(b) The board must be composed of the following members:

1. At least two members with cybersecurity credentials and a minimum of 10 years of cybersecurity experience.

2. At least one member with proven leadership in relevant emerging technologies, such as network communications or artificial intelligence.

3. At least one member with a proven track record of success in planning, implementing, and overseeing technology in one of the following areas:

a. The military.

b. A commercial enterprise.

c. A government enterprise.

4. At least one member with proven leadership as a former supervisor of elections.

5. At least two members from each major political party.

(c) All members must be qualified electors in this state. A member may not be a current employee, contractor, grantee, beneficiary, shareholder, or immediate family member of a supervisor of elections, the department, an election industry vendor, the Federal Government, a foreign government, or a foreign country of concern as defined in s. 287.138.

(d) Three members constitute a quorum.

(4) In accordance with s. 20.052(8), this section is repealed October 2, 2028, unless reviewed and saved through reenactment by the Legislature.

Section 5. Subsection (1) of section 101.293, Florida Statutes, is amended to read:

101.293 Competitive sealed bids and proposals required. --

(1) Any purchase of voting equipment or other election systems, the individual or combined retail value of which is in excess of the threshold amount for CATEGORY TWO purchases provided in s. 287.017, by a governing body must ~~shall~~ be by means of competitive sealed bids or competitive sealed proposals from at least two bidders, except under the following conditions:

(a) If a majority of the governing body agrees by vote that an emergency situation exists in regard to the purchase of such equipment to the extent that the potential benefits derived from competitive sealed bids or competitive sealed proposals are outweighed by the detrimental effects of a delay in the acquisition of such equipment; or

(b) If a majority of the governing body finds that there is but a single source from which suitable equipment may be obtained.

If such conditions are found to exist, the chair of the governing body must ~~shall~~ certify to the Division of Elections the situation and conditions requiring an exception to the competitive sealed bidding and competitive sealed proposal requirements of this section. Such certification must ~~shall~~ be maintained on file by the division.

Section 6. Section 101.294, Florida Statutes, is amended to read:

101.294 Purchase and sale of voting equipment and other election systems. --

(1) The Division of Elections of the Department of State shall adopt uniform rules for the purchase, use, and sale of voting equipment and other election systems in this ~~the~~ state. Such rules must prohibit outsourcing operations or using the same vendor for multiple functions that, when combined, would enable a single vendor to compromise election security or block transparency or auditing. A ~~No~~ governing body may not ~~shall~~ purchase or cause to be purchased any voting equipment or other election systems unless such equipment has been certified for use in this state by the Department of State.

(2) Any governing body contemplating the purchase or sale of voting equipment or other election systems shall notify the Division of Elections of such considerations. The division shall attempt to coordinate the sale of excess or outmoded equipment by one county with purchases of necessary equipment by other counties.

(3) The division shall inform the governing bodies of the various counties of the state of the availability of new or used voting equipment or other election systems and of sources available for obtaining such equipment.

(4) A vendor of voting equipment or other election systems may not provide an uncertified voting or other election system, voting or other election system component, or voting or other election system upgrade to a local governing body or supervisor of elections in this state.

(5) Before or in conjunction with providing a voting or other election system, voting or other election system component, or voting or other election system upgrade, the vendor shall provide the local governing body or supervisor of elections with a sworn certification that the voting or other election system, voting or other election system component, or voting or other election system upgrade being provided has been certified by the Division of Elections.

Section 7. Section 101.295, Florida Statutes, is amended to read:

101.295 Penalties for violation. --

(1) Any member of a governing body which purchases or sells voting equipment or other election systems in violation of the provisions of ss. 101.292-101.295, which member knowingly votes to purchase or sell voting equipment or other election systems in violation of the provisions of ss. 101.292-101.295, commits a felony of the third ~~is guilty of a misdemeanor of the first~~ degree, punishable as provided by s. 775.082, ~~or~~ s. 775.083, or s. 775.084, and is ~~shall be~~ subject to suspension from office on the grounds of malfeasance.

(2) Any vendor, chief executive officer, or vendor representative of voting equipment who provides a voting system, voting system component, or voting system upgrade in violation of this chapter commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

Section 8. Section 101.34, Florida Statutes, is amended to read:

101.34 Custody of voting system and other election systems. --The supervisor of elections shall be the custodian of the voting system and other election systems in the county, and he or she shall appoint deputies necessary to prepare and supervise the voting system and other election systems before ~~prior to~~ and during elections. The compensation for such deputies shall be paid by the supervisor of elections.

Section 9. Subsection (1) of section 101.341, Florida Statutes, is amended, and subsection (2) of that section is reenacted, to read:

101.341 Prohibited activities by voting system, other election system, and election material custodians and deputy custodians. --

(1) A ~~No~~ voting system, other election system, or election material custodian or deputy custodian or other employee of the supervisor of elections, which employee's duties are primarily involved with the preparation, maintenance, or repair of voting equipment or other election systems, may not accept employment or any form of consideration from any person or business entity involved in the purchase, repair, or sale of voting equipment, other election systems, or election materials unless such employment has the prior written approval of the supervisor of elections of the county by which such person is employed. The supervisor of elections and his or her employees may not seek employment, contracts, or other relationships with suppliers of voting systems, other election systems, election material vendors, or election-related service providers on behalf of family members and must advise family members that such employment, contract, or other relationship creates the appearance of a conflict of interest. The supervisor of elections shall notify the Secretary of State immediately upon learning of such conflict. The Secretary of State may remove a supervisor of elections after learning of a conflict, but not after the conflict is resolved or may retain the supervisor with mandatory satisfactory quarterly reviews of the conflict until it is resolved or until the supervisor has left office. The Secretary of State shall promptly report to the public notice of the conflict, disposition of the office, subsequent reviews, and resolution of the conflict.

(2) Any person violating the provisions of this section is guilty of a misdemeanor of the first degree, punishable as provided by s. 775.082 or s. 775.083. Such person shall also be subject to immediate discharge from his or her position.

Section 10. Section 101.5604, Florida Statutes, is amended to read:

101.5604 Adoption of system; procurement of equipment; commercial tabulations. --The board of county commissioners of any county, at any regular meeting or a special meeting called for the purpose, may, upon consultation with the supervisor of elections, adopt, purchase or otherwise procure, and provide for the use of any electronic or electromechanical voting or other election system approved by the Department of State in all or a portion of the election precincts of that county. Thereafter the electronic or electromechanical voting or other election system may be used for voting at all elections for public and party offices and on all measures and for receiving, registering, and counting the votes thereof in such election precincts as the governing body directs. A county may ~~must~~ use an electronic or electromechanical precinct-count tabulation voting system or may count ballots by hand at the precinct level.

Section 11. Section 101.5605, Florida Statutes, is amended to read:

101.5605 Examination and approval of equipment. --

(1) The Department of State shall publicly examine all makes of electronic or electromechanical voting systems and other election systems submitted to it and determine whether the systems comply with the requirements of s. 101.5606.

(2)(a) Any person owning or interested in an electronic or electromechanical voting system or other election system may submit it to the Department of State for examination. The vote counting segment must ~~shall~~ be certified after a satisfactory evaluation testing has been performed according to the standards adopted under s. 101.015(1). This testing must ~~shall~~ include, but is not limited to, testing of all software required for the voting system's operation; the ballot reader; the rote processor, especially in its logic and memory components; the digital printer; the fail-safe operations; the counting center environmental requirements; and the equipment reliability estimate. For the purpose of assisting in examining the system, the department shall employ or contract for the services of multiple individuals ~~at least one individual~~ who collectively have expertise in the ~~is expert in one or more~~ fields of software design, cybersecurity, data security, data processing, mechanical engineering, and public administration and shall require from each ~~the~~ individual a written report of his or her examination.

(b) The person submitting a system for approval or the board of county commissioners of any county seeking approval of a given system shall reimburse the Department of State in an amount equal to the actual costs incurred by the department in examining the system. Such reimbursement must ~~shall~~ be made regardless of whether ~~or not~~ the system is approved by the department.

(c) ~~Neither~~ The Secretary of State or an ~~nor any~~ examiner may not ~~shall~~ have any pecuniary interest in any voting equipment, other election systems, election materials, or election-related service providers. Upon learning of a potential conflict, an examiner must disclose in writing to his or her supervisor all potential conflicts regarding a family member's relationships to the voting system, other election systems, election materials, or election-related service providers. The examiner must be excluded from all activities related to the entity with which there is a conflict.

(d) The Department of State shall approve or disapprove any voting system or other election system submitted to it within 120 days after the date of its initial submission.

(3)(a) Before the Department of State approves the electronic or electromechanical voting system or other election system, the person who submitted it for examination must ~~shall~~ provide the department with the name, mailing address, and telephone number of a registered agent, which agent must have and continuously maintain an office in this state. Any change in the name, address, or telephone number of the registered agent must ~~shall~~ promptly be made known to the department.

(b) Before entering into a contract for the sale or lease of a voting system or other election system, any of which is approved under this section, to any county, the person entering into such contract shall provide the department with the name, mailing address, and telephone number of a registered agent, which agent must have and continuously maintain an office in this state. Any change in the name, address, or telephone number of the registered agent must ~~shall~~ promptly be made known to the department.

(c) The department's proof of delivery or attempted delivery to the last mailing address of the registered agent on file with the department at the time of delivery or attempted delivery is valid for all notice purposes.

(d) Within 30 days after completing the examination and upon approval of any electronic or electromechanical voting system, the Department of State shall make and maintain a report on the system, together with a written or printed description and drawings and photographs clearly identifying the system and the operation thereof. As soon as practicable after such filing, the department shall send a notice of certification and, upon request, a copy of the report to the governing bodies of the respective counties of the state. Any voting system that does not receive the approval of the department may not be adopted for or used at any election.

(e) After a voting system has been approved by the Department of State, any change or improvement in the system is required to be approved by the department prior to the adoption of such change or improvement by any county. If any such change or improvement does not comply with the requirements of this act, the department must ~~shall~~ suspend all sales of the equipment or system in the state until the equipment or system complies with the requirements of this act.

(4) The Department of State may at any time reexamine any system, or any part thereof, which has previously been approved for the purpose of updating the certification of the system.

Section 12. Section 101.5606, Florida Statutes, is amended to read:

101.5606 Requirements for approval of systems. --

(1) An ~~No~~ electronic or electromechanical voting system may not ~~shall~~ be approved by the Department of State unless it is so constructed that it, at a minimum, does all of the following:

(a) ~~(1) It~~ Permits and requires voting in secrecy and protects confidential voter information, including voter driver license numbers, social security numbers, signatures, and voted status, during an election.

(b) ~~(2)~~ Allows ~~It permits~~ each elector to vote at any election for all persons and offices for whom and for which the elector is lawfully entitled to vote, and no others; to vote for as many persons for an office as the elector is entitled to vote for; and to vote for or against any question upon which the elector is entitled to vote.

(c) ~~(3) It~~ Immediately rejects a ballot where the number of votes for an office or measure exceeds the number which the voter is entitled to cast or where the tabulating equipment reads the ballot as a ballot with no votes cast.

(d) ~~(4)~~ For voting systems using marksense ballots, ~~it~~ accepts a rejected ballot pursuant to paragraph (c) ~~subsection (3)~~ if a voter chooses to cast the ballot, but records no vote for any office that has been overvoted or undervoted.

(e) ~~(5) It~~ Is capable of correctly counting votes.

(f) ~~(6)~~ Allows ~~It permits~~ each voter at a primary election to vote only for the candidates seeking nomination by the political party in which such voter is registered, for any candidate for nonpartisan office, and for any question upon which the voter is entitled to vote.

(g) ~~(7)~~ At presidential elections, allows ~~it permits~~ each elector, by one operation, to vote for all presidential electors of a party or for all presidential electors of candidates for President and Vice President with no party affiliation.

(h) ~~(8) It~~ Provides a method for write-in voting.

(i) ~~(9) It~~ Is capable of accumulating a count of the specific number of ballots tallied for a precinct, accumulating total votes by candidate for each office, and accumulating total votes for and against each question and issue of the ballots tallied for a precinct.

(j) ~~(10) It~~ Is capable of tallying votes from ballots of different political parties from the same precinct, in the case of a primary election.

(k) ~~(11) It~~ Is capable of automatically producing precinct totals in printed form.

(l) ~~(12)~~ If it is of a type which registers votes electronically, allows ~~it will permit~~ each voter to change his or her vote for any candidate or upon any question appearing on the official ballot up to the time that the voter takes the final step to register his or her vote and to have the vote computed.

(m) ~~(13) It~~ Is capable of providing records from which the operation of the voting system may be audited. Audit reports must be published and made available for inspection during and after an election to the supervisor of elections, canvassing boards, and the public. Audits and reports must include the operating system and other third-party applications on the system.

(n) ~~(14) It~~ Uses a precinct-count tabulation system.

(o) ~~(15) It~~ Does not use an apparatus or device for the piercing of ballots by the voter.

(2) Any other election system or election vendor may not be approved by the Department of State unless it is confirmed that it, at a minimum, does all of the following:

(a) Protects confidential voter information, including driver license numbers, social security numbers, signatures, and voted status, before an election.

(b) Protects all election information that is not made publicly available.

(c) Adequately performs the functions for which it was advertised and marketed.

(d) Is capable of providing records from which the operation of other election systems may be audited. Audit reports must be published and made available for inspection during and after an election to the supervisor of elections, canvassing boards, and the public. Such reports must be suited for performing manual cross-checks during system operation in order to verify that unauthorized communications capability and use of unauthorized portable media access were not granted.

Section 13. Section 101.56065, Florida Statutes, is amended to read:

101.56065 Voting system and other election system defects; disclosure; investigations; penalties. --

(1) For purposes of this section, the term:

(a) "Defect" means:

1. Any failure, fault, or flaw in an electronic or electromechanical voting or other election system approved pursuant to s. 101.5605 which results in nonconformance with the standards in a manner that affects the timeliness or accuracy of the casting or counting of ballots; enables theft of, modification of, or access to confidential voter or election data; enables the introduction of malware; or exposes the state's systems or data to bad actors outside the country or to individuals who are not United States citizens; or

2. Any failure or inability of the voting or other election system manufacturer or vendor to make available or provide approved replacements of hardware or software to the counties that have purchased the approved voting or other election system, the unavailability of which results in the system's nonconformance with the standards in a manner that affects the timeliness or accuracy of the casting or counting of ballots or enables the insertion of illegal ballots, the change of or deletion of legal ballots, the fabrication of a false identity for voting purposes, or the impersonation of an eligible voter.

(b) "Standards" refers to the requirements in ss. 101.5606 and 101.56062 under which a voting or other election system was approved for use in the state.

(c) "Vendor" means a person who submits or previously submitted a voting or other election system that was approved by the Department of State in accordance with s. 101.5605, or a person who enters into a contract for the sale or lease of a voting or other election system to any county, or that previously entered into such a contract that has not expired.

(2)(a) On January 1 of every odd-numbered year, each vendor shall file a written disclosure with the department identifying any known defect in the voting or other election system or the fact that there is no known defect, the effect of any defect on the operation and use of the approved ~~voting~~ system, and any known corrective measures to cure a defect, including, but not limited to, advisories and bulletins issued to system users.

(b) Implementation of corrective measures approved by the department which enable a system to conform to the standards and ensure the timeliness and accuracy of the casting and counting of ballots constitutes a cure of a defect.

(c) If a vendor becomes aware of the existence of a defect, he or she must file a new disclosure with the department as provided in paragraph (a) within 30 days after the date the vendor determined or reasonably should have determined that the defect existed.

(d) If a vendor discloses to the department that a defect exists, the department may suspend all sales or leases of the voting system in this ~~the~~ state and may suspend the use of the system in any election in this ~~the~~ state. If the department determines that the defect creates a security risk or impacts vote counting accuracy or the ballot acceptance error rate, the department must suspend the use of the system. The department shall provide written notice of any such suspension to each affected vendor and supervisor of elections. If the department determines that the defect no longer exists, the department must ~~shall~~ lift the suspension and provide written notice to each affected vendor and supervisor of elections.

(e) If a vendor fails to file a required disclosure for a voting or other election system previously approved by the department, that system may not be sold, leased, or used for elections in this ~~the~~ state until it has been submitted for examination and approval and adopted for use pursuant to s. 101.5605. The department shall provide written notice to all supervisors of elections that the system is no longer approved.

(3)(a) If the department has reasonable cause to believe a voting or other election system approved pursuant to s. 101.5605 contains a defect either before, during, or after an election which has not been disclosed pursuant to subsection (2), the department must ~~may~~ investigate whether the voting or other election system has a defect.

(b) If the department has reasonable cause pursuant to paragraph (a) or if the supervisor of elections of a county that purchased or leased a voting or other election system that contains the alleged defect requests, in writing, an investigation by the department, the department must ~~may~~ initiate an investigation ~~pursuant to paragraph (a) on its own initiative or upon the written request of the supervisor of elections of a county that purchased or leased a voting system that contains the alleged defect~~.

(c) Upon initiating an investigation, the department shall provide written notice to the vendor and all of the supervisors of elections.

(4)(a) If the department determines by a preponderance of the evidence that a defect exists in the voting system, or that a vendor failed to timely disclose a defect pursuant to subsection (2), the department must ~~shall~~ provide written notice to the affected vendor and supervisors of elections.

(b) A vendor entitled to receive notice pursuant to paragraph (a) shall, within 10 days, file a written response to the department which:

1. Denies that the alleged defect exists or existed as alleged by the department or that the vendor failed to timely disclose a defect, and sets forth the reasons for such denial; or

2. Admits that the defect exists or existed as alleged by the department or that the vendor failed to timely disclose a defect.

(c) If the defect has been cured, the vendor must ~~shall~~ provide an explanation of how the defect was cured.

(d) If the defect has not been cured, the vendor must ~~shall~~ inform the department whether the defect can be cured and must ~~shall~~ provide the department with a plan for curing the defect. If the defect can be cured, the department must ~~shall~~ establish a timeframe within which to cure the defect.

(5) If after receiving a response from the vendor, the department determines that a defect does not exist or has been cured within the timeframe established by the department, the department may not ~~shall~~ take ~~no~~ further action.

(6) If the department determines that~~:~~ a vendor failed to timely disclose a defect, ~~;~~ or that a defect exists and a vendor has not filed a written response or has failed to cure within the timeframe established by the department, or if the defect cannot be cured, the department must ~~shall~~ impose a civil penalty of $25,000 for the defect plus an amount equal to the actual costs incurred by the department in conducting the investigation and the actual costs incurred by the supervisor of elections for any hand counts or recounts or for conducting a new election because of the defect. If the defect cannot be cured, the vendor must refund a prorated share of the purchase price based upon the remaining useful life of the system.

(7)(a) If the department finds that a defect existed, ~~:~~

~~(a)~~ the department may suspend all sales and leases of the voting or other election system and may suspend its use in any county in this ~~the~~ state. The department shall provide written notice of the suspension to each affected vendor and supervisor of elections.

(b) If the department determines that a defect no longer exists in a voting or other election system that has been suspended from use pursuant to paragraph (a), the department must ~~shall~~ lift the suspension and authorize the sale, lease, and use of the voting or other election system in any election in this ~~the~~ state. The department shall provide written notice that the suspension has been lifted to each affected vendor and supervisor of elections.

(c) If the defect cannot be cured, the department may disapprove the voting or other election system for use in elections in the state. The department shall provide written notice to all supervisors of elections that the system is no longer approved. After approval of a system has been withdrawn pursuant to this paragraph, the system may not be sold, leased, or used in elections in the state until it has been submitted for examination and approval and adopted for use pursuant to s. 101.5605.

(d) Any vendor against whom a civil penalty was imposed under this section may not submit a voting system for approval by the Department of State in accordance with s. 101.5605 or enter into a contract for sale or lease of a voting or other election system in this ~~the~~ state until the civil penalties have been paid and the department provides written confirmation to the supervisors of elections of the payment.

(8) The department shall prepare a written report of any investigation conducted pursuant to this section.

(9) The authority of the department under this section is in addition to, and not exclusive of, any other authority provided by law.

(10) All proceedings under this section are exempt from chapter 120.

Section 14. Section 101.5612, Florida Statutes, is amended to read:

101.5612 Testing of voting and other election systems ~~tabulating equipment~~. --

(1) Before installation, a certification team must inspect and approve all source code for tabulating and other election equipment. The Secretary of State and the department's vendors shall maintain valid media-based extended validation certificates issued and recognized by certificate authorities to each entity in its own legal name. Each vendor shall prepare its source code package, prepare a digital signature using such certificate, and submit both to the secretary. The secretary shall publish, promptly and permanently, the submitted materials on his or her publicly available website for public access. The secretary shall perform his or her verification process. Upon successful verification, the secretary shall produce a digitally signed build of the software using the aforementioned certificate and permanently publish it on his or her publicly available website adjacent to the vendor's source materials. This process must be followed for all subsequent change events, including modifications, enhancements, deletions, or replacements. Software may not be installed on any equipment that is not received from and signed by the secretary. A list of all systems, including the software version installed by the supervisors of elections, must be posted on the website and must be updated whenever the software versions are updated.

(2) All electronic or electromechanical voting systems must ~~shall~~ be thoroughly tested at the conclusion of maintenance and programming. Tests must ~~shall~~ be sufficient to determine all of the following: ~~that~~

(a) Whether the voting system is properly programmed. ~~;~~

(b) Whether the election is correctly defined on the voting system. ~~, and~~

(c) Whether all of the voting system input, output, and communication devices are working properly.

(d) Whether all settings are per department and security plan guidelines.

(e) Whether all security and system software is up to date.

(f) Whether any unauthorized software has been installed.

(g) Whether the system is free from malware.

(h) Whether all removable storage is secure.

(i) That unauthorized communications capability has not been installed.

(j) Whether all of the input, output, and communication devices are working properly.

The same testing standards, including verification that the specified functions are working properly, must be implemented on other election systems.

(3) ~~(2)~~ On any day not more than 25 days before the commencement of early voting as provided in s. 101.657, the supervisor of elections shall have the automatic tabulating equipment and other election equipment publicly tested. The equipment testing must ~~to~~ ascertain that the equipment will correctly count the votes cast for all offices and on all measures. If the ballots to be used at the polling place on election day are not available at the time of the testing, the supervisor must ~~may~~ conduct an additional test not more than 10 days before election day. Other election system testing must ascertain that the system will correctly perform its designated functions during the election, such as having the automated signature verification systems tested to determine whether they properly perform signature verification and are properly calibrated. Public notice of the time and place of the testing of voting and other election equipment must ~~test shall~~ be given at least 48 hours prior thereto by publication on the county website as provided in s. 50.0311, on the supervisor of elections' website, or once in one or more newspapers of general circulation in the county. If the applicable website becomes unavailable or if there is no newspaper of general circulation in the county, the notice must be posted in at least four conspicuous places in the county. The supervisor or the municipal elections official shall ~~may~~, at the time of qualifying, give written notice of the time and location of the public preelection test to each candidate qualifying with that office and obtain a signed receipt that the notice has been given. The Department of State shall give written notice to each statewide candidate at the time of qualifying, or immediately at the end of qualifying, that the voting equipment will be tested and advise each candidate to contact the county supervisor of elections as to the time and location of the public preelection test. The supervisor or the municipal elections official shall, at least 30 days before the commencement of early voting as provided in s. 101.657, send written notice by certified mail to the county party chair of each political party and to all candidates for other than statewide office whose names appear on the ballot in the county and who did not receive written notification from the supervisor or municipal elections official at the time of qualifying, stating the time and location of the public preelection test of the automatic tabulating equipment and other election systems. The canvassing board shall convene, and each member of the canvassing board shall certify to the accuracy of the test. For the test, the canvassing board may designate one member to represent it. The test must ~~shall~~ be open to representatives of the political parties, the press, and the public. Each political party may designate one person with expertise in the computer field who shall be allowed in the central counting room or work area when all tests are being conducted and when the official votes are being counted. The party designee may observe the other election systems during election operations, may request inspection of and photograph the system settings, may receive and retain these settings in print form, and may have access to a hotline to report technology issues. The public must be allowed to observe all tabulating equipment and election equipment while in use, either through direct observation or a video stream, and to request inspection of system settings provided that voter privacy is maintained. The designee or the public may not interfere with the normal operation of the canvassing board or election operations. However, the designee and the public must be able to call a hotline when an issue is

identified and submit a work ticket. The calls to the hotline must be monitored by the state and the canvassing board. A political party may select to have the designees of the party monitor the hotline.

(4) ~~(3)~~ For electronic or electromechanical voting systems configured to tabulate vote-by-mail ballots at a central or regional site, the public testing must ~~shall~~ be conducted by processing a preaudited group of ballots so produced as to record a predetermined number of valid votes for each candidate and on each measure and to include one or more ballots for each office which have activated voting positions in excess of the number allowed by law in order to test the ability of the automatic tabulating equipment to reject such votes. If any error is detected, the cause therefor must ~~shall~~ be corrected and an errorless count must ~~shall~~ be made before the automatic tabulating equipment is approved. The test must ~~shall~~ be repeated and errorless results achieved immediately before the start of the official count of the ballots and again after the completion of the official count. The programs and ballots used for testing must ~~shall~~ be sealed and retained under the custody of the county canvassing board. Immediately after the preaudited group of ballots is run and results reconciled, a randomly selected number of test ballots from one or more public participants must be chosen. After the batch of ballots provided by the public is reconciled, the two batches must be comingled and reconciled again. The test of combined public and preaudited ballots must also be repeated and errorless results achieved immediately before the start of the official count of the ballots and again after the completion of the official count.

(5)(a)1. ~~(4)(a)1.~~ For electronic or electromechanical voting systems configured to include electronic or electromechanical tabulation devices which are distributed to the precincts or used in an absentee vote counting center, all ~~or a sample~~ of the devices to be used in the election must ~~shall~~ be publicly tested. ~~If a sample is to be tested, the sample shall consist of a random selection of at least 5 percent or 10 of the devices for an optical scan system, whichever is greater.~~ For touchscreen systems used for voters having a disability, all ~~a sample of at least 2 percent~~ of the devices must be tested. The test must ~~shall~~ be conducted by processing a group of no fewer than 20 ballots, causing the device to output results for the ballots processed, and comparing the output of results to the results expected for the ballots processed. The group of ballots must ~~shall~~ be produced so as to record a predetermined number of valid votes for each candidate and on each measure and to include for each office one or more ballots which have activated voting positions in excess of the number allowed by law in order to test the ability of the tabulating device to reject such votes. Immediately after the official group of test ballots is run and results reconciled, a batch of up to 20 random test ballots from one or more public participants must be chosen if there are more than 20 ballot submissions proposed. After the batch of ballots provided by the public is reconciled, the two batches must be comingled and reconciled again. The test of combined public and official test ballots must be repeated and errorless results achieved immediately before the start of the official count of the ballots and again after the completion of the official count.

2. If any tested tabulating device is found to have an error in tabulation or other election system is determined to have an error in its function or security measures, it must ~~shall~~ be deemed unsatisfactory. For each device deemed unsatisfactory, a report on the finding must be written and be publicly available for review. For each device or system deemed unsatisfactory, the canvassing board shall, with assistance from a county or state information technology expert, ~~shall~~ take steps to determine the cause of the error, ~~shall attempt to~~ identify and test other devices that could reasonably be expected to have the same error, and shall test a number of additional devices sufficient to determine that all devices are satisfactory. Upon deeming any device unsatisfactory, the canvassing board may require all devices to be tested or may declare that all devices are unsatisfactory. The system may not allow remote logins.

3. If the operation or output of any tested tabulation device, such as spelling or the order of candidates on a report, is in error, such problem must ~~shall~~ be reported to the canvassing board. The canvassing board shall then determine whether ~~if~~ the reported problem warrants its deeming the device unsatisfactory.

(b) At the completion of testing under this subsection, the canvassing board or its representative, the representatives of the political parties, and the candidates or their representatives who attended the test shall witness the resetting of each device that passed to a preelection state of readiness, ~~and~~ the sealing of its USB ports and other physical ports through which malware may be inserted, and the verification of its power receptacle using tamper evident uniquely serialized official security seals. Once sealed, the device or system must have a removable sticker placed on it which can be seen by public observers and employees. Such sticker must have a device or system identifier and checkboxes for each test performed and passed, including settings. The list of validated settings must be posted next to the test sticker ~~each device that passed in such a manner as to secure its state of readiness until the opening of the polls~~.

(c) The canvassing board or its representative shall execute a written statement setting forth the tabulation devices and other election systems tested, the results of the testing, the protective counter numbers, if applicable, of each tabulation device, the number of the seals ~~seal~~ securing each tabulation device or other election system at the conclusion of testing, any problems reported to the board as a result of the testing, and whether each device tested is satisfactory or unsatisfactory.

(d) Any tabulating device or other election system deemed unsatisfactory must ~~shall~~ be recoded, repaired, or replaced and must ~~shall~~ be made available for retesting. Such device must be determined by the canvassing board or its representative to be satisfactory before it may be used in any election. The canvassing board or its representative shall announce at the close of the first testing the date, place, and time that any unsatisfactory device will be retested or may, at the option of the board, notify by telephone each person who was present at the first testing as to the date, place, and time that the retesting will occur.

(e) Records must be kept of all preelection testing of electronic or electromechanical tabulation devices and other election systems used in any election. Such records are to be present and available for inspection and reference during public preelection testing by any person in attendance during such testing and through a public records request at no charge. The test records may also be posted on the election office website. The need of the canvassing board for access to such records during the testing takes ~~shall take~~ precedence over the need of other attendees or the public to access such records so that the work of the canvassing board will not be delayed or hindered. Records of testing must include, for each device, the name of each person who tested the device and the date, place, time, and results of each test. Records of testing must ~~shall~~ be retained as part of the official records of the election in which any device was used for a period of 22 months after election certification.

(6) ~~(5)~~ Any tests involving marksense ballots pursuant to this section must ~~shall~~ employ test ballots created by the supervisor of elections using actual ballots that have been printed for the election. If ballot-on-demand ballots will be used in the election, the supervisor must ~~shall~~ also create test ballots using the ballot-on-demand technology that will be used to produce ballots in the election, using the same paper stock as will be used for ballots in the election.

Section 15. Section 101.591, Florida Statutes, is amended to read:

101.591 Voting and other election system audit. --

(1) On the second day after the closing of the polls ~~Immediately following the certification of each election~~, the county canvassing board or the local board responsible for certifying the election shall conduct a manual audit and may also conduct ~~or~~ an automated, independent audit of the voting systems used in randomly selected precincts. The manual audit must be conducted in at least one precinct for each race on the ballot, and the precinct in which the race is audited must be randomly selected. The number of precincts where a manual audit is conducted must be no less than 5 percent but no more than 10 percent of the precincts. If this results in more precincts than races, the additional precincts must have a randomly selected race audited. If 5 percent of the precincts yields fewer than 5 precincts, the county canvassing board or the local board responsible for certifying the election must randomly chose at least 5 precincts. Random precincts must be selected using a lottery at a publicly noticed canvassing board meeting. If the results of the manual audit show a discrepancy of more than the margin of victory in any race, that race may not be certified until the discrepancy is resolved. If such discrepancy cannot be resolved, there must be a manual recount of the race in all precincts.

(2)(a) For each precinct and race selected, a manual audit must ~~shall~~ consist of a public manual tally of the votes cast using original paper ballots in one randomly selected race that appears on the ballot. The tally sheet for the precinct must ~~shall~~ include election-day, vote-by-mail, early voting, provisional, and overseas ballots collected and counted through election day. The canvassing board and public observers must be present for the retrieval of sealed ballots, the opening of seals, and the manual recount. The manual recount procedure must be videotaped and livestreamed ~~, in at least 1 percent but no more than 2 percent of the precincts chosen at random by the county canvassing board or the local board responsible for certifying the election~~. ~~If 1 percent of the precincts is less than one entire precinct, the audit shall be conducted using at least one precinct chosen at random by the county canvassing board or the local board responsible for certifying the election. Such precincts shall be selected at a publicly noticed canvassing board meeting.~~

(b) An automated audit must ~~shall~~ consist of a public automated tally of the votes cast across every race that appears on the ballot and must use the original paper ballots. The tally sheet must ~~shall~~ include election day, vote-by-mail, early voting, provisional, and overseas ballots in at least 20 percent of the precincts chosen at random by the county canvassing board or the local board responsible for certifying the election. Such precincts must ~~shall~~ be randomly selected at a publicly noticed canvassing board meeting.

(c) The division shall adopt rules for approval of an independent audit system which provide that the system, at a minimum, must be:

1. Completely independent of the primary voting system.

2. Fast enough to produce final audit results within the timeframe prescribed in subsection (4).

3. Capable of demonstrating that the ballots of record have been accurately adjudicated by the audit system.

(3) The canvassing board shall post a notice of the audit, including the date, time, and place, in four conspicuous places in the county and on the home page of the county supervisor of elections website.

(4) The audit must be completed and the results made public before ~~no later than 11:59 p.m. on the 7th day following~~ certification of the election by the county canvassing board or the local board responsible for certifying the election.

(5) By December 15 of each general election year, the county canvassing board or the board responsible for certifying the election shall provide a report with the results of the audit to the Department of State in a standard format as prescribed by the department. The report must be consolidated into one report with the overvote and undervote report required under s. 101.595(1). The report must ~~shall~~ contain, but is not limited to, the following items:

(a) The overall accuracy of audit.

(b) A description of any problems or discrepancies encountered.

(c) The likely cause of such problems or discrepancies.

(d) Recommended corrective action with respect to avoiding or mitigating such circumstances in future elections.

(6) If a manual recount is undertaken pursuant to s. 102.166, the canvassing board is not required to perform the audit provided for in this section.

Section 16. Paragraph (a) of subsection (2) of section 101.68, Florida Statutes, is amended to read:

101.68 Canvassing of vote-by-mail ballot. --

(2)(a) The county canvassing board may begin the canvassing of vote-by-mail ballots upon the completion of the public testing of automatic tabulating equipment pursuant to s. 101.5612(3) ~~s. 101.5612(2)~~, but must begin such canvassing by no later than noon on the day following the election. However, notwithstanding any such authorization to begin canvassing or otherwise processing vote-by-mail ballots early, no result shall be released until after the closing of the polls in that county on election day. Any supervisor, deputy supervisor, canvassing board member, election board member, or election employee who releases the results of a canvassing or processing of vote-by mail ballots prior to the closing of the polls in that county on election day commits a felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084.

Section 17. Paragraph (c) of subsection (2) of section 101.69, Florida Statutes, is amended to read:

101.69 Voting in person; return of vote-by-mail ballot. --

(2)

(c)1. On each day of early voting, all secure ballot intake stations must be emptied at the end of early voting hours and all ballots retrieved from the secure ballot intake stations must be returned to the supervisor's office.

2. For secure ballot intake stations located at an office of the supervisor, all ballots must be retrieved before the secure ballot intake station is no longer monitored by an employee of the supervisor.

3. Employees of the supervisor must comply with procedures for the chain of custody of ballots as required by s. 101.015(6) ~~s. 101.015(4)~~.

Section 18. This act shall take effect July 1, 2025.

Copyright © 2026 State Net. All Rights Reserved.